

20STCP03969 20STCP03969

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Case Number: 20STCP03969 Hearing Date: September 3, 2026 Dept: 26

TENTATIVE RULING:

Judgment Creditor

Desert Passage Community Association's Motion

for Award of Attorney Fees and Costs is granted

in the amount of \$1,624.50 in attorney fees and \$193.56 in costs.

Analysis:

On September 26, 2016, the Justice Court, Maricopa-Stanfield Precinct, County of Pinal, State of Arizona, entered judgment in favor of Plaintiff Desert Passage Community Association ("Judgment Creditor") in the action entitled Desert Passage Community Association v. Gabriel Serrato and Monica Serrato in Case No. CV2017-0049. The default judgment was entered in the principal sum of \$2,145.21, plus interest and reasonable attorney's fees and costs against Defendants Gabriel Serrato and Monica Serrato (collectively, "Judgment Debtors"). On December 2, 2020, this Court entered judgment based on the sister-state judgment in Case No. CV2017-0049.

On October 19, 2022, the Court granted Judgment Creditor's first Motion for Attorney's Fees and Costs. (Minute Order, 10/19/22.) The Court then granted Judgment Creditor's second Motion for Attorney's Fees and Costs on August 7, 2024. (Minute Order, 08/07/24.) Plaintiff now brings a third Motion for Attorney's Fees and Costs, filed on June 5, 2026. Judgment Creditor served Judgment Debtors with the Motion by mail on July 28, 2026. To date, no opposition has been filed.

Discussion

Request for Judicial Notice

The Motion is accompanied by a request for judicial notice of the (1) Declaration of Covenants, Conditions and Restrictions for Desert Passage recorded in the Pinal County, Arizona Recorder's Office on December 30, 2004 as Instrument No. 2004-108203; (2) Judgment entered in the Justice Court, Maricopa-Stanfield Precinct, County of Pinal, State of Arizona in the action entitled Desert Passage Community Association v. Gabriel Serrato and Monica Serrato in Case No. CV2017-0049; and (3) Judgment on Sister-State Judgment entered in the above-entitled action, in the Los Angeles County Superior Court, case number 20STCP03969. The request for judicial notice is granted pursuant to Evidence Code section 452, subdivisions (c) and (d).

Entitlement

to Attorney Fees and Costs

"The judgment creditor may claim under this section the following costs of enforcing a judgment: . . . (6) Attorney's fees, if allowed by Section 685.040." (Code Civ. Proc., § 685.070, subd. (a).) Code of Civil Procedure, section 685.040 states: "The judgment creditor is entitled to the reasonable and necessary costs of enforcing a judgment. Attorney's fees incurred in enforcing a judgment are not included in costs collectible under this title unless otherwise provided by law. Attorney's fees incurred in enforcing a judgment are included as costs collectible under this title if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5." Also, the motion must be brought within two years of the incurred costs. (Code Civ. Proc., § 685.080, subd. (a).)

Based on the award of attorney's fees in the judgment from the sister-state case, Plaintiff is also entitled to attorney's fees incurred enforcing its judgment here pursuant to Code of Civil Procedure section 685.040. (Motion, RJN, Exh. 2, p. 2.) The Motion is timely filed with respect to fees incurred between June 25, 2024 and the hearing on the instant Motion. (Motion, Bailio Decl., ¶¶7-13 and Exh. A.)

Calculation of Attorney Fees and Costs

The Court's objective is to award attorney fees at the fair market value based on the particular action. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate" (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1134.) The lodestar method is based on the factors, as relevant to the particular case: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Id. at 1132.) "The "experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.'" (Id.) A negative modifier was appropriate when duplicative work had been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.)

Plaintiff

submits the declaration of its attorney, Austin Baillio ("Baillio"), in support of its request for attorney fees. Baillio declares that he billed \$375.00 an hour until January 10, 2025, and then billed \$395.00 per hour, with some work charged on a flat fee basis. (Motion, Baillio Decl., ¶6 and Exh. A.) The paralegals billed at \$175.00 to \$185.00 per hour. (Id. at ¶9 and Exh. A.) The Court finds the work billed at an hourly rate by the paralegals, and for Baillio's work, to be supported and reasonable. The paralegals followed up with a private investigator and searched databases for information about Judgment Debtors' military status, potential bankruptcies, and potential assets. (Ibid.) Counsel charged Judgment Creditor a flat rate of \$400.00 to draft the instant Motion. (Id. at Exh. A.) Therefore, the Court finds the attorney's fees were reasonable and necessary to Judgment Creditor's collection efforts and awards it attorney's fees of \$1,624.50.

Regarding

costs incurred, Judgment Creditor seeks \$340.56 for file management software provider charges, electronic filing fees, postage, and background investigation. (Motion, Baillio Decl., Exh. A., p. 2.) The Court declines to award costs for file management software provider charges, which the Motion does not discuss. Judgment Creditor is awarded the remaining costs in the amount of \$193.56.

Conclusion

Therefore, Judgment Creditor Desert Passage Community Association's Motion for Award of Attorney Fees and Costs is granted in the amount of \$1,624.50 in attorney fees and \$193.56 in costs.

Moving party to give notice.